

# STATE OF NEW YORK

6480--A

2025-2026 Regular Sessions

## IN ASSEMBLY

March 5, 2025

Introduced by M. of A. BRONSON, SHIMSKY, GLICK, TAYLOR, COLTON, JACOBSON  
-- read once and referred to the Committee on Labor -- committee  
discharged, bill amended, ordered reprinted as amended and recommitted  
to said committee

AN ACT to amend the labor law, in relation to establishing the "no  
severance ultimatums act"

The People of the State of New York, represented in Senate and Assem-  
bly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as  
2 the "no severance ultimatums act".

3 § 2. The labor law is amended by adding a new section 215-d to read as  
4 follows:

5 § 215-d. Prohibition against coercive severance ultimatums. 1. Defi-  
6 nitions. For the purposes of this section, the following terms shall  
7 have the following meanings:

8 (a) "Employee" shall have the same meaning as set forth in section one  
9 hundred ninety of this chapter.

10 (b) "Employer" shall:

11 (i) have the same meaning as set forth in section one hundred ninety  
12 of this chapter; and

13 (ii) include governmental agencies.

14 (c) "Severance agreement" shall mean an agreement offered by an  
15 employer to an employee upon separation of employment and related to  
16 such separation that requires such employee to release waivable claims  
17 against their employer.

18 2. Severance ultimatums. Any employer offering an employee or former  
19 employee a severance agreement shall notify such employee that:

20 (a) Such employee has the right to consult an attorney regarding such  
21 agreement;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 (b) Such employee shall be provided with a consideration period of not  
2 less than twenty-one calendar days within which to consider the agree-  
3 ment;

4 (c) Such employee may revoke such agreement within seven calendar days  
5 of the execution of such agreement, and the agreement shall not become  
6 effective or enforceable until such revocation period has expired; and

7 (d) Such employee may sign such agreement prior to the end of the  
8 consideration period set forth in paragraph (b) of this subdivision, as  
9 long as such employee's decision to shorten such consideration period is  
10 knowing, voluntary, and not induced by the employer through fraud,  
11 misrepresentation, or a threat to withdraw or alter such consideration  
12 period prior to the expiration of such consideration period, or by  
13 providing different terms to such employee if such employee signs such  
14 agreement prior to the expiration of such consideration period.

15 3. The provisions of this section may be waived by any severance  
16 agreement that specifically acknowledges the provisions of this section  
17 and negotiated pursuant to a collective bargaining agreement.

18 4. Notwithstanding any other law to the contrary, any severance agree-  
19 ment shall be deemed void and unenforceable if it violates the  
20 provisions of subdivision two of this section.

21 5. Nothing herein shall be deemed in any way to limit, restrict, or  
22 impair any law, rule, or regulation from providing greater protections  
23 than provided for in this section.

24 § 3. This act shall take effect immediately.